

File No.: EXP202213022

RESOLUTION No.: R/00453/2023

Considering the complaint filed on November 25, 2022, with this Agency by A.A.A., (hereinafter the complainant), against XFERA MÓVILES, S.A., (hereinafter the respondent), for not having duly attended to their right of access.

After carrying out the procedural actions provided for in Title VIII of Organic Law 3/2018, of December 5, on the Protection of Personal Data and Guarantee of Digital Rights (hereinafter LOPDGDD), the following FACTS have been established:

FIRST: The complainant exercised their right of access against the respondent with NIF A82528548, and their request, as stated by the complainant, did not receive the legally established response.

Furthermore, they request: "...a copy of the voice recordings made of all communications I have had with this company, including the recording of the contract..."

The complainant provides various documents related to the complaint filed with this Agency and regarding the exercise of the right exercised.

SECOND: In accordance with Article 65.4 of the LOPDGDD, which has provided a mechanism prior to the admission of complaints filed with the AEPD, consisting of transferring them to the Data Protection Officers designated by the controllers or processors, for the purposes provided for in Article 37 of the aforementioned regulation, or to them when they have not been designated, the complaint was forwarded to the respondent entity for analysis and to respond to the complainant and this Agency within one month.

THIRD: The result of the transfer procedure indicated in the previous Fact did not allow for the understanding that the complainant's claims were satisfied. Consequently, on February 25, 2023, for the purposes provided for in Article 64.1 of the LOPDGDD, the Director of the Spanish Agency for Data Protection agreed to admit the complaint for processing and informed the parties that the maximum period to resolve the present procedure, which is understood to have been initiated by said admission agreement, will be six months.

The aforementioned agreement granted the respondent entity a hearing process, so that within ten working days, it could present the allegations it deemed appropriate. This entity stated, in summary, the following allegations:

According to their statements, they had already attended to the right and now resend a copy of the email sent to the complainant regarding this matter.

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"...Regarding the complainant's right of access, it was attended to, and the interested party was informed of this circumstance on January 12, 2023, by email sent from dpo@masmovil.com. The attention to the exercise of the right is again attached as Document No. 2..."

In the copy of the email sent to the complainant to address the right, the following paragraph is added:

"...On the other hand, regarding the call you requested, we inform you that it is not possible to provide it due to the fact that the retention period has expired, which is why the right is denied for lack of object..."

FOURTH: The allegations presented by the respondent have been forwarded to the complainant, so that, within fifteen working days, they may formulate any allegations they consider appropriate.

The complainant insists on their right to the recordings, especially regarding the contract.

LEGAL GROUNDS

FIRST: The Director of the Spanish Agency for Data Protection is competent to resolve this matter, in accordance with the provisions of paragraph 2 of Article 56 in relation to paragraph 1 f) of Article 57, both of Regulation (EU) 2016/679 of the European Parliament and of the Council of April 27, 2016, on

the protection of natural persons with regard to the processing of personal data and on the free movement of such data (hereinafter, GDPR); and in Article 47 of Organic Law 3/2018, of December 5, on the Protection of Personal Data and Guarantee of Digital Rights (hereinafter LOPDGDD).

SECOND: In accordance with the provisions of Article 55 of the GDPR, the Spanish Agency for Data Protection is competent to perform the functions assigned to it in Article 57, including the enforcement of the Regulation and promoting awareness among controllers and processors regarding their obligations, as well as handling complaints filed by a data subject and investigating the reasons for them.

Correspondingly, Article 31 of the GDPR establishes the obligation of controllers and processors to cooperate with the supervisory authority that requests it in the performance of its functions. In cases where they have designated a data protection officer, Article 39 of the GDPR assigns this officer the function of cooperating with that authority.

In accordance with this regulation, prior to the admission of the complaint that gives rise to this procedure, it was forwarded to the responsible entity for analysis, to respond to this Agency within one month, and to prove that it had provided the complainant with the due response, in the event of exercising the rights regulated in Articles 15 to 22 of the GDPR.

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The aforementioned admission agreement determines the initiation of the present procedure regarding the lack of attention to a request for the exercise of the rights established in Articles 15 to 22 of the GDPR, regulated in Article 64.1 of the LOPDGDD, according to which:

“1. When the procedure refers exclusively to the lack of attention to a request for the exercise of the rights established in Articles 15 to 22 of Regulation (EU) 2016/679, it shall be initiated by an admission agreement, which shall be adopted in accordance with the provisions of the following article.

In this case, the deadline for resolving the procedure shall be six months from the date on which the admission agreement was notified to the complainant. After this period, the interested party may consider their complaint to be upheld.”

The clarification of administrative responsibilities within the framework of a sanctioning procedure is not deemed appropriate, given that its exceptional nature implies that, whenever possible, preference should be given to alternative mechanisms that are supported by current regulations.

It is the exclusive competence of this Agency to assess whether there are administrative responsibilities that should be clarified in a sanctioning procedure and, consequently, the decision regarding its initiation, with no obligation to initiate a procedure upon any request made by a third party. Such a decision must be based on the existence of elements that justify the initiation of sanctioning activity, circumstances that do not occur in the present case, considering that the present procedure duly restores the guarantees and rights of the complainant.

THIRD: The rights of individuals regarding the protection of personal data are regulated in Articles 15 to 22 of the GDPR and Articles 13 to 18 of the LOPDGDD. The rights of access, rectification, deletion, opposition, the right to limit processing, and the right to portability are contemplated.

The formal aspects related to the exercise of these rights are established in Articles 12 of the GDPR and 12 of the LOPDGDD.

Additionally, consideration is given to what is expressed in Recitals 59 and following of the GDPR.

In accordance with the provisions of these regulations, the data controller must establish formulas and mechanisms to facilitate the exercise of rights by the interested party, which shall be free of charge (without prejudice to the provisions of Articles 12.5 and 15.3 of the GDPR), and is obliged to respond to requests made no later than one month, unless it can demonstrate that it is unable to identify the interested party, and to express its reasons in case it does not intend to comply with such request. The burden of proof regarding compliance with the duty to respond to the request for the exercise of rights made by the affected party lies with the data controller.

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The communication addressed to the interested party regarding their request must be expressed in a concise, transparent, intelligible, and easily accessible manner, using clear and simple language. Regarding the right of access to personal data, in accordance with the provisions of Article 13 of the LOPDGDD, when the exercise of the right refers to a large amount of data, the data controller may request the affected party to specify the "data or processing activities referred to in the request." The right will be considered granted if the data controller provides remote access to the data, thus fulfilling the request (although the interested party may request information regarding the aspects provided for in Article 15 of the GDPR).

The exercise of this right may be considered repetitive more than once during a period of six months, unless there is a legitimate reason for it.

On the other hand, the request will be considered excessive when the affected party chooses a means other than the one offered that incurs a disproportionate cost, which must be borne by the affected party.

FOURTH: In accordance with the provisions of Article 15 of the GDPR and Article 13 of the LOPDGDD, "the interested party has the right to obtain from the data controller confirmation as to whether or not personal data concerning them is being processed and, if so, the right of access to the personal data."

Like the other rights of the interested party, the right of access is a personal right. It allows the citizen to obtain information about the processing of their data, the possibility of obtaining a copy of the personal data concerning them that is being processed, as well as information, in particular, about the purposes of the processing, the categories of personal data concerned, the recipients or categories of recipients to whom the personal data have been or will be communicated, the expected retention period or criteria for retention, the possibility of exercising other rights, the right to lodge a complaint with the supervisory authority, the information available about the origin of the data (if it has not been obtained directly from the data subject), the existence of automated decisions, including profiling, and information about transfers of personal data to a third country or to an international organization. The possibility of obtaining a copy of the personal data being processed will not negatively affect the rights and freedoms of others.

In the case analyzed here, the claiming party exercised their right of access in a general manner and specifically their access to voice recordings exchanged with the respondent.

The respondent partially fulfills the right, which is why the claim is admitted for processing.

The right of access is not fully addressed since, upon analyzing the response before the admission of this claim for processing, it was found that the information regarding the communication of data to third parties and international organizations was missing, as established in Article 15.1.c) of the GDPR, and furthermore, it does not address the claimant's request regarding the voice recordings.

It should be pointed out to the respondent that if they have provided a response and subsequently the claim is accepted for processing because that response is deemed insufficient, it is not valid to submit the same response to address the right.

The respondent sent an email to the claimant to address the right in January 2023 and later, in March of the same year, the response was deemed incomplete and the claim was accepted for processing. Now, with the allegations from April 2023, the respondent submits the same email already sent in January.

On the other hand, there is the request for voice recordings to which the respondent only refers by stating that they are no longer available.

It should be clarified regarding the data that has been deleted that, in accordance with data protection regulations, deletion must be carried out through blocking; therefore, the deletion of personal data, having ceased to be necessary for the purpose that justified its processing, must be carried out through the modality of blocking the personal data being processed, which will not automatically imply its physical deletion. This action is subject to certain conditions aimed at ensuring and guaranteeing the right of the affected party to the protection of their personal data.

The blocked data will remain available to the Courts, the Public Prosecutor's Office, or other competent public administrations, particularly data protection authorities, for the demands of possible liabilities arising from the processing and for the statute of limitations of these. However, the interested party has the right to know the data that is blocked, due to the possible liabilities that may arise from the processing, so the right of access also extends to the blocked data.

Finally, the claimant must be aware that they cannot request the data without specifying part of its location or extent. For example, if we have a contractual relationship with an entity for several years, we cannot ask them to send us all the calls that have occurred during the relationship. It is necessary to specify the day and, if possible, the time, and to take into account that voice recordings, depending on their purpose, may have a short retention period; however, when the recording contains proof of contractual consent, the retention period must be longer and must be kept for the duration of the contractual relationship.

In the case analyzed here, with the documentation available in the procedure, as can be inferred from the allegations made and the documentation provided by the responding party in the process of transferring the claim, it is verified that the access granted by the responding entity is incomplete.

In view of the cited provisions and others of general application, the Director of the Spanish Data Protection Agency RESOLVES:

FIRST: TO ACCEPT the claim made by A.A.A. and to urge XFERA MÓVILES, S.A. with NIF A82528548, to send to the claimant, within ten working days following the notification of this resolution, a certification that addresses the requested right of access or denies it with justification indicating the reasons why the request cannot be granted, in accordance with the provisions established in the body of this resolution. The actions taken as a result of this Resolution must be communicated to this Agency within the same period. Failure to comply with this resolution could result in the commission of an infringement of art. 83.6 of the GDPR, classified as very serious for the purposes of limitation in article 72.1.m) of the LOPDGDD, which will be sanctioned in accordance with art. 58.2 of the GDPR.

SECOND: NOTIFY this resolution to A.A.A. and to XFERA MÓVILES, S.A.

In accordance with the provisions of article 50 of the LOPDGDD, this Resolution will be made public once it has been notified to the interested parties.

Against this resolution, which concludes the administrative procedure in accordance with art. 48.6 of the LOPDGDD, and in accordance with the provisions of article 123 of the LPACAP, the interested parties may optionally file a motion for reconsideration before the Director of the Spanish Data Protection Agency within one month from the day following the notification of this resolution or directly file a contentious-administrative appeal before the Contentious-Administrative Chamber of the National Court, in accordance with the provisions of article 25 and section 5 of the fourth additional provision of Law 29/1998, of July 13, regulating the Contentious-Administrative Jurisdiction, within two months from the day following the notification of this act, as provided in article 46.1 of the aforementioned Law.

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Mar España Martí

Director of the Spanish Data Protection Agency

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